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|     |                                                                             | <p>Based on the uncontroverted declarations of Officer N. Castro (#641) and Sergeant K. Kestly (#523), the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture.</p> <p>Based on the foregoing, the motion is <b>GRANTED</b>.</p> <p>Petitioner's counsel is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 11. | <p><b><i>Claim of Zavala and Medina</i></b></p> <p><i>2025-01532561</i></p> | <p>Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture. As more fully set forth below, the motion is <b>CONTINUED TO THURSDAY, JULY 23, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>.</p> <p>Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$75,953.87 in United States Currency Petitioner seized on or about January 9, 2025. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property.</p> <p>Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense."</p> <p>"Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health &amp; Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.' (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three</p> |

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|     |                                                                    | <p>consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)” (<i>People v. Mendocino County Assessor’s Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.)</p> <p>Here, the two “Receipt for Seizure and Personal Notice of Intended Forfeiture” submitted identify real parties in interest Pedro Nicolas Zavala (Zavala) and Brenda Gonzalez Medina (Medina). Zavala and Medina were served with the receipts on January 9 and January 16, 2025. Accordingly, Health and Safety Code section 11488.4, subdivision (c), required Zavala and Medina each to be served with process of the petition initiating these proceedings. That generally requires personal service, but there are alternative means available upon a sufficient showing.</p> <p>Here, the declarations submitted with the motion admitted Petitioner was unable to personally serve either Zavala or Medina with the petition initiating these proceedings. Petitioner therefore sent copies of the petition to Zavala and Medina by certified mail at their last known address.</p> <p>Unfortunately, although service by certified mail is an authorized method for service of process on a defendant located in another state if the defendant signs and returns a return receipt (Code Civ. Proc., §§ 415.40, 417.20), that is not an acceptable means of service within the State of California. Service by mail within the state requires the party being served to execute a notice and acknowledgment of service. No such acknowledgment is presented in this case. As a result, neither Zavala nor Medina have been properly served in these proceedings and therefore the court cannot grant this motion at this time. The hearsay statements allegedly waiving any claim to the funds at issue is not sufficient.</p> <p>Based on the foregoing, the petition is <b>CONTINUED</b> as set forth above for proper service on Zavala and Medina. Petitioner is ordered to file a proper proof of service at least five court days before the continued hearing date.</p> <p>Petitioner’s counsel is ordered to give notice of this ruling.</p> |
| 12. | <p><b><i>Litrinium, Inc. vs. Adas</i></b></p> <p>2021-01210846</p> | No tentative ruling will be posted                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 13. | <p><b><i>Tidrick vs. FCA US LLC</i></b></p> <p>2021-01188037</p>   | Before the court are the following two motions filed by plaintiff Ashley Tidrick (Plaintiff): (1) motion for attorney fees, costs, and expenses filed on May 9, 2023, seeking attorney fees, costs, and expenses incurred from case                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |